PARADZAI MAKAYI

And

PEPERTUA MAKAYI

And

PATRICIA CHIPATISO

And

TAFARA MAKAYI

And

PATRICIA CHIPATISO N.O.

Versus

LLOYD MATIVENGA MHISHI N.O.

And

ARNOLD AGGREY TENDAYI KHANDA

And

DARKEN CONSTRUCTION

And

MUFARO LOVEJOY CHIROMBO

And

SIMBARASHE CHIROMBO

And

KEITH MAPFUMO

And

ALOIS GARIKAI CHINGONZO

And

DOMINI TAKURA KODZWA

And

FARAI M. MUSARA

And

CITY OF HARARE

And

MASTER OF THE HIGH COURT

And

THE REGISTRAR OF DEEDS

And

ARCHIBALD TAZVITYA MAKAYI

And

FUNGAYI MAKAYI

And

TAPIWA MAKAYI

And

TABETHA RANGARIRAYI NYAMADZAWO

And

REBECCA UNOPA MAKAYI

IN THE HIGH COURT OF ZIMBABWE
DUBE-ABNDA J
HARARE 16 September 2025 & 10 April 2026

Opposed court application for a *declaratur* and consequential relief

T. Mpofu for the applicants
C. Mavhondo for the 1st respondent
M. Nkomo for the 2nd and 3rd respondents
Ms. *N. S. Ndlovu* for the 6th respondent

DUBE-BANDA J:

[1] This is an application for a *declaratur* and consequential relief. It is important, for the purposes of context, to identify the parties in this matter and locate the interest each has in this litigation. For convenience and where the context permits, the parties to this litigation shall be referred to by their names. The first four applicants are the beneficiaries in the estate of Simplicio Ecras Makayi ("Makayi"), in whose name the property at the centre of this litigation is registered. The fifth applicant is the executor dative in the estate of Deliwe Leocadia Makayi, her interest has not been stated in the founding affidavit. The first respondent, Lloyd Mativenga Mhishi, is the executor dative of the estate of Makayi. The applicants contend that the reason for citing the executor is that he adopted and was implementing a permit in relation to stand 539 Marlborough Township, Extension 3 of Marlborough, measuring 4981 square metres ("stand 539") held under deed of transfer number 5340/1979. This is the property at the centre of this litigation, and which is registered in the name of Makayi. The executor is also cited because he is party to the Cessions and Transfer of Rights Agreements concluded by and between Arnold Aggrey Tendayi Khanda ("land developer") and the fifth to twelfth respondents, which agreements the applicants are seeking an order that they be set aside. The second respondent is Arnold Aggrey Tendayi Khanda ("Khanda"), who is the developer of stand 539 in terms of the Developer Agreement he allegedly concluded with the late Makayi. He is also cited as a creditor in the estate of Makayi. As will appear later in this judgment, the lawfulness of the Developer Agreement and his status as a creditor is contested by the applicants. The third respondent is Darken Construction; its juristic standing is not known to the applicants. Darken Construction has an interest in this matter because the permit, whose validity is being contested in this litigation, was issued in its name. The fourth, fifth, sixth, seventh, eighth and ninth respondents' interests arise from being the purchasers and Cessionary of rights, title, and interests known as land shares in stand 539. The tenth respondent is the City of Harare, a local authority established in terms of the Urban Councils Act [*Chapter 29:15*]. It issued or granted the permit to erect thirty flats on stand 539. The eleventh respondent is the Master of the High Court, the authority responsible for the supervision of the administration and winding up of deceased estates and is the authority which issued the Consent to Sale some of the units created in terms of the contested permit. The twelfth respondent is the Registrar of Deeds,

who is cited in her capacity as the official who will be responsible for the registration of the transfer of any rights, title, and interest purchased in terms of the contested permit. The reason for the citation of the thirteenth to the seventeenth respondents is not provided in the applicants' papers.

[2] The applicants seek a *declaratur* and consequential relief. In the main, the relief sought is that the permit for the erection of thirty flat units on stand 539 be declared invalid at law; and as a consequential relief, an order setting aside Cession and Transfer Rights Memorandum of Agreements of sale entered into between Khanda and the various purchasers of subdivisions created by the contested permit; that Khanda is not a creditor in the estate late Makhayi; and that the Consent to Sale issued by the Master of the High Court in respect of share numbers 2,3,4,5,8,9,10,11,12,13 and 14 be set aside.

Factual background

[3] These background facts provide the context. In summary, the late Makayi was the legal owner of a piece of land known as stand 539. The late Makayi and Khanda entered into an agreement, wherein the latter would develop the property for the purpose of creating and servicing thirty residential apartments on stand 539. On 10 May 2016, Darken Construction filed an application for change of use in terms of s 26(3) of the Regional, Town and Country Planning Act [*Chapter* 29;12], for a permit to erect thirty garden flat units on stand 539. On 26 April 2017, the City of Harare issued a permit to Darken Construction for the erection of thirty flat units on stand 539. According to the Letters of Administration, Makayi, the registered owner of stand 539, died on 22 May 2016. Based on the issued permit, Khanda filed a claim against the estate, and his claim was accepted by the executor. The executor made an application in terms of s 120 of the Administration of Estates Act [*Chapter 6:01*] for a Consent to Sale of ten flat units, arising from the permit. The Master acceded to the application and granted the s 120 Consent. In the result, it was contended that Khanda, even though no estate account had been filed with the Master of the High Court for approval, began to sell various units created by the contested permit under what was disguised as Cessions and Transfer of Rights Memorandum of Agreements. Various sales were executed between 14 September 2017 and 10 March 2022. The applicants contend that the application for the permit issued by the City of Harare, the agreements concluded by Khanda, together with the Consent to Sale issued by the Master of the High Court are invalid at law. It is against this background that the applicants, the beneficiaries of the estate of Makayi, filed this application seeking the relief stated above.

The opposition to the application

[4] The Master of the High Court and the Registrar of Deeds did not file opposing papers, and it is safe to conclude that they took a position to abide by the decision of the court. The fourth, fifth, seventh, eighth, ninth, eleventh to seventeenth respondents did not file opposing affidavits and were barred in terms of r 59(9) of the High Court Rules, 2021. The application was initially opposed by the first, second, third, sixth, and tenth, respondents. At the commencement of the hearing, Mr *Mavhondo*, counsel for the first respondent, the executor dative, informed the court that this respondent was withdrawing his opposition to this matter and has decided to be non-aligned and shall abide by the decision of the court. In the result, the notice of opposition and the heads of argument filed by the executor were expunged from the record.

[5] It is the position of the tenth respondent, the City of Harare, in the matrix of this matter that requires closer scrutiny. It is so because it filed an opposing affidavit and heads of argument but defaulted on the hearing. The question that arises is whether; in considering the merits of this application, the court can factor into the matrix the averments contained in the papers filed by this respondent. The view I take is that it will be unnecessary for this court to start to interrogate the merits of its opposition, because such merits have not been motivated. Whether the averments in the opposition are considered or not, in respect of the City of Harare, whatever order is given, it will be a default judgment. See *Chaza* v *Chawareva* SC 02-2018. In *Zvinavashe* v *Ndlovu* 2006 (2) ZLR 372 (S) the court at p 375 said:

> "……for the avoidance of doubt, it is declared that the giving of reasons for the default judgment in question by the court *a quo* was unnecessary and consequently of no force or effect. It does not convert the default judgment into a judgment on the merits."

[6] In the circumstances, no consideration will be accorded to the notice of opposition and heads of argument filed by the City of Harare.

[7] In respect of the second and third respondents, a point *in limine* was taken that their opposing affidavit was invalid, and consequently, there was no valid notice of opposition before the court. For completeness, it is apposite to mention that Mr *Nkomo,* counsel for the second and third respondents, in answer to this point *in limine*, made an oral application for condonation. Firstly, a court cannot condone a fatally defective affidavit and rule that it is valid. Such is impermissible. A fatally defective affidavit cannot be rescued by an application for condonation. Is defective by operation of law, and no court of law can override the law. Secondly, in general, an application for condonation cannot be an answer to a point *in limine*.

In other words, once a point *in limine* is taken, it cannot be sought to be defeated by an application for condonation. In the circumstances, the application for condonation was a non-event and was accordingly refused.

[8] After hearing argument in respect of this point *in limine*, I ruled that the opposing affidavit was invalid, and that without a valid opposing affidavit, there was no valid notice of opposition. This is so because in terms of r 59(1) of the High Court Rules, 2021, a notice of opposition shall be in Form No. 23 and shall be supported by one or more affidavits. Therefore, a notice of opposition not supported by an affidavit is fatally defective and invalid.

[9] The reasons for this decision are the following. The jurisprudence in this jurisdiction is that for an affidavit to be valid, the deponent of an affidavit must take the oath in the presence of a commissioner of oaths. The commissioner must append his or her signature on the statement in the presence of the deponent, and the commissioner must also endorse the date on which the oath was administered, and these acts must occur contemporaneously. See *Ndoro & Anor* v *Conjugal Enterprises (Private) Limited & Anor* HH 814-22, *State* v *Hurle & Ors* (2) 1998 (2) ZLR 42. In *Ariston Management Services* v *Econet Wireless Zimbabwe Limited* SC 123-23, the Supreme Court cited with approval the decision in *Mandishayike* v *Sithole* HH 798-15 and held thus:

> "In the Mandishaya case (sic) the court remarked that the deponent of an affidavit must take the oath in the presence of the Commissioner. Equally, the Commissioner must append his or her signature on the statement in the presence of the deponent. The court went on to say that the Commissioner must also endorse the date on which the oath was administered and that those acts must occur contemporaneously. ……..The reason behind that requirement is for the court to be satisfied that the oath was administered at a given date in the presence of both the deponent and the Commissioner. Without the date, the court may never be able to ascertain if the oath was properly administered in accordance with the law."

[10] In *Sheng An Mining (Pvt) Ltd* v *Daka & Anor* HB 65-24, the court also cited, with approval, the decision in *Mandishayike* v *Sithole* HH 798-15, where the court said: -

> "An affidavit is a written statement made on oath before a Commissioner of Oaths or other person authorised to administer oaths. The deponent to the statement must take the oath in the presence of the Commissioner of Oaths and must append his or her signature to the document in the presence of such Commissioner. Equally the Commissioner must administer the oath in accordance with the law and thereafter must append his or her signature onto the statement in the presence of the deponent. The Commissioner must also endorse the date on which the oath was so administered. These acts must occur contemporaneously."
>
> The court went on to state that:-

> "What comes out of precedent is that an affidavit must have a date on which the oath was administered. It is insufficient that the affidavit might have a date on which the deponent signed it."

[11] KABASA J in *Darcal (Private) Limited* v *Minister Of Lands, Fisheries, Water And Rural Development N.O & Others* (526 Of 2025) [2026] Zwbhc 14 (19 February 2026) puts it thus:

> "That said, I am persuaded by counsel for the respondent's submissions. The absence of the date on which the oath was administered, which date ought to have been reflected on the Commissioner's signature fails to show that the deponent took the oath on the date the Commissioner administered such oath. The contemporaneity is not ascertainable and the respondents are within their rights to question the validity of the application in light of the malady afflicting the founding affidavit."

[12] This point *in limine* arose from the fact that the opposing affidavit of these respondents has no date. Without a date, the statement does not qualify to be an affidavit; it may just be referred to as an affidavit for purposes of convenience. On the facts of this case, it cannot be said that the deponent to the statement appeared before the commissioner of oaths, took an oath, and appended his or her signature on the document in the presence of such commissioner. It can also not be said that the commissioner administered the oath in accordance with the law and appended his or her signature on the statement in the presence of the deponent. The principle of contemporaneity has not been complied with in this case. This is not a matter of elevating form over substance. It is a matter of law. As stated above, the opposing affidavit was invalid, and without a valid opposing affidavit, there was no valid notice of opposition. It is for these reasons that I ruled that the opposing affidavit was invalid and expunged it from the record. In the result, the notice of opposition and the heads of argument of the second and third respondents were a non-event and were expunged from the record.

Points *in limine* taken by the sixth respondent

[13] For completeness, it is important to state that the only valid notice of opposition before court is that of the sixth respondent. In his opposing papers, the sixth respondent took points *in limine*, which are: (a) that the applicants used the wrong procedure and forum for the relief sought; (b) that the applicants approached the court with dirty hands; (c) that there are material disputes of fact which cannot be resolved on the papers. At the hearing, Ms *Ndlovu*,

counsel for the sixth respondent, initially persisted with the point *in limine* that the applicants used the wrong procedure and forum for the relief sought. I say initially because, after brief submissions, counsel informed the court that this point *in limine* was being abandoned. The other points *in limine* were also abandoned. In the circumstances, no further reference will be made regarding the abandoned points *in limine*.

Merits

[14] The applicants contend that the permit issued by the City of Harare is at law invalid. The facts supporting this contention are that the permit was applied for in May 2016 and was issued on 28 November 2017. It was submitted that in terms of s 26(7) of the Regional Town and Country Planning Act [*Chapter 29:12*], if an application for a permit has not been determined within three months of the date of acknowledgment of receipt, it shall be deemed to have been refused by the local authority. In addition, it was submitted that no application in terms of s 26(7) of the Act for an extension was made and granted by the City of Harare. It was further submitted that even if an application for an extension was made, it was not granted. It was submitted that the application was not decided within three months, and therefore, by operation of law, it was deemed refused, which renders the permit invalid. In addition, it was submitted that the permit was granted after the death of Makayi, the landowner. Further, it was submitted that the application for a permit was made in contravention of s 26(1) of the Act, in that it was not signed by Makayi and that his consent as the owner of the property did not form part of the application. It was further submitted that all transactions which emanate or are predicated on the permit are a legal nullity.

[15] In addition, it was submitted that the agreements of sale concluded by and between the respondents are in violation of s 39 of the Regional Town and Country Planning Act [*Chapter 29:12*], in that they are agreements of sale of pieces of land without a subdivision permit, as the permit they purport to be predicated on is at law invalid. It was submitted that the agreement should be set aside as they are predicated on an invalid permit.

[16] As stated above, the only opposition to this application has been mounted by the sixth respondent. This respondent submitted that the agreement between the late Makayi and Khanda is binding on the deceased's estate. It was further averred that the second respondent, Khanda, acted in accordance with his obligations arising from the agreement with the late Makayi. It was contended that there was no need for Makayi to sign the application for a permit because, in terms of the agreement, it was Khanda who was obliged to secure the permit, and he did so through his company called Darken Construction, the third respondent.

It was contended further that the permit appears to have been lawfully granted, in that it is not for the applicants to determine whether procedures were followed or not. It was averred that the applicants have at all times acted in pursuit of and have been beneficiaries of the permit they now dispute. The first applicant is alleged to have sold to this respondent two stands created by the permit; which he is now seeking to be declared invalid.

[17] In addition, the sixth respondent submitted that Khanda is a valid creditor of the estate, and the permit was issued procedurally, and the subsequent consent to sell, cessions, and sales were all lawfully done and are valid. He contended that he erected a home valued at US$200,000.00 on one of the stands. This respondent neither admits nor disputes that the second respondent did not file an application for extension but takes the view that the granting of the permit shows that everything was done in terms of the law.

[18] Further, it was submitted that the sixth respondent inquired with the second and third respondents and was informed that all relevant procedures for the project had been complied with as required by the law. In addition, it was argued that there was compliance with s 26(1) of the Regional, Town and Country Planning Act [*Chapter* 29:12], in that the City of Harare could not have processed the application without it being accompanied by the written consent of the owner, which consent was the development agreement between Makayi and Khanda. In addition, it was argued that the second respondent was authorised by Makayi to apply for a permit as *per* their agreement, which application was made through Darken Construction. The sixth respondent sought that this application be dismissed with costs on a punitive scale.

[19] The absence before the court of the City of Harare, Arnold Tendayi Khanda, and Darken Construction leaves the validity of the permit with no one to protect and defend. It is so because these were the parties who were involved in the application and the granting of the permit. The sixth respondent was not involved in the application for the permit, and he is not in good standing to defend its validity. His opposing affidavit shows that his version is predicated on general assumptions and what he was allegedly told by Khanda and Darken Construction. This court cannot attach any weight to his assumptions and hearsay. Therefore, without the version of Khanda, Darken Construction, and the City of Harare defending the permit, the applicants' factual averments remain and stand uncontested. In addition, the fact that the executor's version is not before the court, the applicants' factual averments remain and stand uncontested. For completeness, and as stated above, it must be stated that in respect of the executor, City of Harare, Khanda, Darken Construction, fourth, fifth, seventh, eighth, and ninth respondents, this application is unopposed. Therefore, the question for

determination is whether, on the version of the applicants, and where needs be, juxtaposed with the version of the sixth respondent, a case has been made for the relief sought in this application.

[20] In summary, the applicants' uncontested version, in support of this application, shows the following:

i. That they are the beneficiaries in the estate of the late Simplicio Ecras Makayi and therefore, have an interest in the subject matter of this litigation.

ii. That the application for a permit to erect thirty garden flat units was not signed by the owner of the land, the late Makayi. In addition, without the version of Khanda, Darken Construction, and the City of Harare, there is no evidence of the documents filed in support of the application. Therefore, the averment by the sixth respondent that the agreement between Khanda and Makayi was attached to the application, to signify the landowner's consent, is not borne out by the facts on record. In the circumstances, the absence of the applicant's signature in the application shows that the requirements of s 26(1) of the Act, which requires the consent of the landowner was not complied with.

iii. On 30 May 2016, and in terms of s 26(3) of the Act, the City of Harare wrote to Darken Construction acknowledging, with effect from 10 May 2016, receipt of the application for a permit. Section 26(7) of the Act says that if the application is not determined within three months of the date of acknowledgement of the receipt of the application or any extension of that period, the application shall be deemed to have been refused. In *casu*, the applicants contend that the permit was issued on 26 April 2017, a period of more than three months from the date of the acknowledgement of receipt of the application. There was no application for an extension, and the application for a permit was deemed refused. This version is uncontroverted. The net effect of this uncontroverted version is that the permit was issued outside the timeline allowed by s 26(7) of the Act, and therefore it is invalid at law.

iv. The applicants' uncontested version is that the permit was issued despite the noncompliance with s 26(3) (d) of the Act, which says:

> "Where an application in terms of subsection (1)—
> relates to development, which conflicts with any condition which is registered against the title deed of the property concerned and confers a right which may be enforced by the owner of another property;

> the local planning authority shall require the applicant, at his own expense, to give public notice of the application and to serve notice of the application on every owner of property adjacent to the land to which the application relates and such other owners as the local planning authority may direct and to submit proof that such notice has been given."

v. The absence of proof that such notice was given meant that the application was incomplete and was not ripe for consideration, let alone to be granted.

vi. Furthermore, the application was granted after the death of the landowner, Simplicio Ecras Makayi.

[21] The uncontroverted version is that Arnold Khanda, using the permit issued outside the requirements of the law, lodged a claim against the estate, which the executor accepted. He thus became a creditor in the estate of the late Makayi. The attempt by the sixth respondent to defend Khanda is of no moment. He has neither the facts nor the evidence to controvert the applicants' version. In addition, the uncontroverted evidence is that the executor, acting on the erroneous belief that the permit was valid at law, sought a s 120 consent to sell ten units. The application was granted. In the result, various units were sold, including the one sold to the sixth respondent. The applicants contend that since the permit was invalid at law, the sale agreements were in violation of s 39 of the Regional Town and Country Planning Act, in that they were sales of undivided pieces of land without a subdivision permit. It is trite that sale of land without a subdivision permit is invalid.

[22] The argument that the first applicant sold a stand or stands predicated on the contested permit is not available to the sixth respondent. If the permit is invalid by operation of law, it cannot be rescued by the conduct of one of the applicants. In any event, he is not the only applicant in this matter; the interests of the other applicants cannot be sidelined because of the conduct of one of them. Again, the fact that the sixth respondent is an innocent purchaser cannot rescue his case, this is so because by operation of law, the permit on which his agreement of sale is standing is invalid.

[23] In conclusion, on the facts of this case, and the uncontroverted version of the applicants, a case has been made for the relief sought in this application. In other words, this is a proper case for the court to exercise its discretion to grant a *declaratur* and consequential relief sought by the applicants in terms of the draft order.

[24] The applicants sought costs on a legal practitioner and client scale. It is trite that the scale of legal practitioner and client is an extraordinary one which should be reserved for

cases where it can be found that a litigant conducted itself in a clear and indubitably vexatious and reprehensible manner. Such an award is very exceptional and is intended to be very punitive and indicative of extreme opprobrium. It should be in relation to conduct that is clearly and extremely scandalous or objectionable that these exceptional costs are awarded. See *Rallings Enterprises (Pvt) Ltd* v *Luwo & Ors* 2020 (2) ZLR 51 (H). In *casu*, no case has been made for costs on a legal practitioner and client scale. Most of the respondents did not oppose this application. In addition, no wrong can be attributed to the sixth respondent; he bought the stand genuinely believing the permit was valid and that everything was above board. He cannot be penalised with costs for trying to rescue the property in which he has invested. In fact, this is a case where each party must bear its own costs of suit.

In the result, it is ordered as follows:

i. The permits for the erection of thirty flats units on stand 539 Marlborough Township issued to Darken Construction for and on behalf of the late Simplicio Ecras Makayi by the City of Harare dated 28 April 2017 be and is hereby declared invalid and set aside for having been issued in contravention of the provisions of s 26(7) of the Regional Town and Country Planning Act [*Chapter 29:12*].

ii. The late Simplicio Ecras Makayi having died on 22 May 2016, the application for a permit filed, in terms of s 26(3) of the Regional Town and Country Planning Act [*Chapter 29:12*] be and is hereby declared invalid for having been issued in favour of a person who was already dead, in violation of the provisions of s 26 of the Regional Town and Country Planning Act [*Chapter 29:12*] as read with the Administration of Estates Act [*Chapter 6:01*].

Consequent to the declaration above,

iii. The Cession and Transfer of Rights Memorandum of Agreement concluded by and between Arnold Aggrey Tendayi Khanda and Mufaro and Lovejoy Chiromo and Simba Chiromo, for the sale and cession of rights, title and interests within a certain piece of land known as land share number 1 measuring 130 square metres of stand 539 Marlborough Township Extension of Marlborough, situated in the district of Salisbury measuring 4981 square

metres, held under Deed of Transfer No. 5340/1979, for having been concluded in violation of s 39 of the Regional Town and Country Planning Act [*Chapter 29:12*], be and is hereby set aside.

iv. The Cession and Transfer of Rights Memorandum of Agreement concluded by and between Arnold Aggrey Tendayi Khanda and Keith Mapfumo for the sale, cession and transfer of rights, title and interests within a certain piece of land known as land share number 15 measuring 130 square metres with exclusive rights of occupation and common areas defined in the Notarial Deed of stand 539 Marlborough Township Extension 3 of Marlborough, situate in the district of Salisbury measuring 4981 square metres, held under Deed of Transfer No. 5340/1979, dated 14 September 2017, for having been concluded in violation of s 39 of the Regional Town and Country Planning Act [*Chapter 29:12*], be and is hereby set aside.

v. The Cession and Transfer of Rights Memorandum of Agreement concluded by and between Arnold Aggrey Tendayi Khanda and Alois Garikai Chingozi for the sale of undivided share +/-3,229% share, being land share number 8 in a certain piece of land being 539 Marlborough Township Extension of Marlborough, situate in the district of Salisbury measuring 4981 square metres, dated 10 March 2022, having been concluded in violation of s 39 of the Regional Town and Country Planning Act [*Chapter 29:12*], be and is hereby set aside.

vi. The Cession and Transfer of Rights Memorandum of Agreement concluded by and between Arnold Aggrey Tendayi Khanda and Dominic Takura Kodzwa for sale and cession of rights, title and interests within an immovable property known as land share 6 measuring +/-130 square metres of 539 Marlborough Township Extension 3 of Marlborough, situate in the district of Salisbury measuring 4981 square metres, dated 7 October 2017, having been concluded in violation of s 39 of the Regional Town and Country Planning Act [*Chapter 29:12*], be and is hereby set aside.

vii. The Cession and Transfer of rights, title and interests concluded by and between Arnold Aggrey Tendayi Khanda and Allias Garikayi Chingodzo within a stand with exclusive rights of occupation and common areas to be defined in the Notarial Deed of stand immovable property known as land

share 16 measuring +/-130 square metres of stand 539 Marlborough Township Extension 3 of Marlborough, situate in the district of Salisbury measuring 4981 square metres, dated 12 November 1979, having been concluded in violation of s 39 of the Regional Town and Country Planning Act [*Chapter 29:12*], be and is hereby set aside.

viii. Arnold Aggrey Khanda, be and is hereby declared not a creditor of the estate of the late Simplicio Ecras Makayi, and any payment made to him pursuant to his unlawful inclusion in the Estate Account as a creditor of the estate shall be refunded by him to the estate.

ix. The Consent of Sale issued by the Master of the High Court of Zimbabwe in respect of share numbers 2,3,4,5,8,9,10,11,12,13, and 14, having been concluded in violation of s 39 of the Regional Town and Country Planning Act [*Chapter 29:12*], be and is hereby set aside.

x. Any development permit or order issued by the City of Harare pursuant to the issuance of the permit for the erection of thirty (30) flat units on stand 539 Marlborough Township for having been issued in contravention of the provisions of s 26(7) of the Regional Town and Country Planning Act [*Chapter 29:12*], in relation to any of the flats units, be and is hereby set aside.

xi. Each part shall bear its own costs.

Mafongonya and Matapura, applicants' legal practitioners
Mhishi Nkomo Legal Practice, 1st respondent's legal practitioners
DMM Attorneys, 2nd and 3rd respondents' legal practitioners
Nembo Attorneys, 6th respondent's legal practitioners